

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Garfield	Team: Squad #10	CCRB Case #: 202006217	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 08/25/2020 12:30 AM	Location of Incident: 1610 Bushwick Avenue	18 Mo. SOL 5/4/2022	Precinct: 83
Date/Time CV Reported Tue, 08/25/2020 8:29 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/14/2020 10:46 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM David Damico	16358	957509	073 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM William Russ	02660	964746	073 PCT
2. POF Venus Pagan	10997	968690	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM David Damico	Abuse: Police Officer David Damico threatened to arrest § 87(2)(b)	A . Exonerated
B . POM David Damico	Force: Police Officer David Damico used physical force against § 87(2)(b)	B . Exonerated
C . POM David Damico	Force: Police Officer David Damico used physical force against § 87(2)(b)	C . Substantiated
D . POM David Damico	Abuse: Police Officer David Damico threatened § 87(2)(b) with the use of force.	D . Substantiated
E . POM David Damico	Discourtesy: Police Officer David Damico spoke discourteously to § 87(2)(b)	E . Substantiated

Case Summary

On August 25, 2020, § 87(2)(b) filed the following complaint with IAB, where it received original log # § 87(2)(b). On September 15, 2020, it was referred to the CCRB.

On August 25, 2020, at approximately 12:30 a.m., § 87(2)(b) was inside the BP Gas Station located at 1610 Bushwick Avenue in Brooklyn. § 87(2)(b) was purchasing items when he got into a dispute with the cashier. Police Officer David Damico, of the 73 Precinct, was behind him in line and spoke with the employee before telling § 87(2)(b) to leave the store. PO Damico told § 87(2)(b) that the employee wanted him out of the store and then threatened to arrest § 87(2)(b) (**Allegation A: Abuse of Authority: Threat of Arrest, exonerated**). PO Damico then approached § 87(2)(b) and pushed him out the door of the gas station (**Allegation B: Force: Physical Force, exonerated**). PO Damico pushed § 87(2)(b) again outside of the gas station (**Allegation C: Force: Physical Force, substantiated**). While outside, § 87(2)(b) repeatedly told PO Damico he would kick his ass and PO Damico responded, "Come here then. Put your stuff down, let's go," (**Allegation D: Abuse of Authority: Threat of Force, substantiated**). At one point, in response to § 87(2)(b) PO Damico said, "Because you want to start calling people fucking s-" before getting interrupted by § 87(2)(b) (**Allegation E: Discourtesy – Word, substantiated**). § 87(2)(b) eventually left the scene. No summons was issued, and no arrest was made.

There is BWC from PO Damico as well as his partner, PO Russ (**BRs 05-08**). Relevant portions will be discussed below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer David Damico threatened to arrest § 87(2)(b).

Allegation (B) Force: Police Officer David Damico used physical force against § 87(2)(b)

It is undisputed that PO Damico used force to remove § 87(2)(b) from the gas station. § 87(2)(b) provided an intake (**BR 01**) and phone (**BR 02**) statement, where he consistently stated that he was overcharged for the items he purchased in the gas station. When he tried to rectify the situation, the police intervened, and PO Damico pushed him out of the store.

§ 87(2)(b) provided more details in his phone statement (**BR 02**). He stated that PO Damico, who was waiting in line along with approximately five civilians behind § 87(2)(b) yelled at him to hurry up. § 87(2)(b) tried to explain the situation to PO Damico, but PO Damico told him to leave the store. PO Damico asked the cashier, "Sir, do you want him here?" § 87(2)(b) did not hear the clerk respond. PO Damico then said to the cashier, "If you don't want him here, we're going to arrest him." § 87(2)(b) stated that PO Damico approached him and used both hands to push him out of the store.

Both PO Damico (**BR 03**) and PO Russ (**BR 04**) were interviewed. Both consistently stated that PO Damico asked the cashier if he wanted § 87(2)(b) to leave the gas station and that the cashier said yes. Both also stated that § 87(2)(b) refused to leave and therefore could have been arrested at that point for trespassing.

PO Damico (**BR 03**) did not recall threatening to arrest § 87(2)(b). He stated that he used minor force in the form of a push to get § 87(2)(b) to move out of the store.

PO Russ (**BR 04**) initially stated that he did not hear PO Damico make any threats of arrest to § 87(2)(b). He then changed his statement and said that PO Damico might have told § 87(2)(b) he could be arrested for trespassing after the store clerk said he wanted him out of the store. PO Russ further stated that after PO Damico asked § 87(2)(b) to leave and he refused, PO Damico used a "minimal" amount of force to "guide" § 87(2)(b) outside of the store.

The cashier at the BP gas station could not be reached to provide a statement for this investigation.

During his interview, PO Damico identified PO Pagan, a third officer on scene, from BWC. PO Pagan was not interviewed for this investigation as BWC was generally comprehensive and her statement would not have affected the recommended dispositions of any allegations for this

complaint.

Both PO Damico's (BRs 05, 07) and PO Russ' (BRs 06, 08) BWCs were obtained for this investigation, however the audio for both videos begins after § 87(2)(b) is removed from the gas station. PO Damico's discussion with the cashier, as well as the alleged threat of arrest, are not captured.

At 00:30 of PO Damico's BWC (BRs 05, 07), PO Damico tells § 87(2)(b) he needs to leave the store. § 87(2)(b) does not leave the store. PO Damico pushes § 87(2)(b) towards the exit and then through the door. He then tells him he is trespassing. A voice in the background says, "they don't want you in here."

New York Penal Law 140.05 states that "A person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises. Trespassing is also a violation." (BR 09).

NYPD Patrol Guide Procedure 221-01 states that, "Members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force." Additionally, "In determining whether the use of force is reasonable, members of the service should consider the following: a. The nature and severity of the crime/circumstances, b. Actions taken by the subject, c. Duration of the action, d. Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, e. Whether the subject is actively resisting custody, f. Whether the subject is attempting to evade arrest by flight, g. Number of subjects in comparison to the number of MOS, h. Size, age, and condition of the subject in comparison to the MOS, i. Subject's violent history, if known, j. Presence of hostile crowd or agitators, k. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence" (BR 10).

Since it was undisputed that PO Damico asked the cashier if he wanted § 87(2)(b) to leave, and PO Russ is heard on BWC stating that the cashier wanted § 87(2)(b) to leave, § 87(2)(g)

PO Damico did not dispute the threat of arrest, § 87(2)(g)

§ 87(2)(g) § 87(2)(b) was trespassing when he refused to leave the gas station after the cashier requested that he did so. § 87(2)(g)

PO Damico asked § 87(2)(b) to leave the store voluntarily before using any force, § 87(2)(g)

It is therefore recommended that **Allegations A and B be exonerated.**

Allegation (C) Force: Police Officer David Damico used physical force against § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer David Damico threatened § 87(2)(b) with the use of force.

§ 87(2)(b) consistently stated that PO Damico used physical force to remove him from the gas station. He did not mention any force used outside of the store nor did he mention any threat of force.

However, at 00:50 in PO Russ' BWC (BRs 06, 08), after § 87(2)(b) was removed from the gas station, PO Damico pushes § 87(2)(b) in the chest while they are speaking outside. While they are arguing, § 87(2)(b) threatens to fight PO Damico, and PO Damico replies, "Come here then. Put your stuff down. Let's go."

PO Damico (BR 03) stated that after he removed § 87(2)(b) was removed from the gas station, § 87(2)(b) made several threatening comments towards him, such as that he would "make quick work of him" and telling PO Damico to take his badge off. He did not recall using any additional force outside of the store nor did he recall saying anything like, "put your stuff down, let's go."

PO Russ (BR 04) provided a statement that was consistent with PO Damico's, stating that at one point § 87(2)(b) said to PO Damico, "If you didn't have a badge, I'd whoop your ass." When

asked if he heard PO Damico say, "Put your stuff down, let's go," PO Russ said he might have.

BWC was presented to both officers during their interviews. At 00:50 in PO Russ' BWC, when PO Damico pushes § 87(2)(b) both officers stated that they had no independent recollection of that happening. PO Damico (BR 03) added that § 87(2)(b) was standing too close to him and it made him feel unsafe at the time of the push. He also added that § 87(2)(b) was technically still trespassing at that point, but that did not factor into his reasoning for pushing § 87(2)(b). When PO Damico says, "Put your stuff down, let's go," PO Damico said he made this statement out of frustration. There were no other law enforcement reasons for making that statement.

In PO Damico's BWC (BRs 06, 07), outside of the gas station, § 87(2)(b) is standing about two feet away from PO Damico, and is arguing with him and PO Russ about the situation. He states that he has the right to remain in the gas station because he purchased something, and PO Damico and PO Russ are telling him that he had to leave the store. At 1:06, PO Damico places his hand on § 87(2)(b) shoulder and says, "Get out of my face." § 87(2)(b) says, "Don't touch me." PO Damico then pushes § 87(2)(b) in the chest with both hands. It is only after this does § 87(2)(b) begin to threaten to fight PO Damico. A civilian is speaking to § 87(2)(b) while this occurs, attempting to calm him down and move him away from the officers. At 2:00, § 87(2)(b) who is still threatening to fight, begins to walk away. After about five steps, PO Damico calls out to him, "Come here then! Come here! Put your stuff down! Let's go!" At no point during the video does any officer say to § 87(2)(b) that he is still trespassing by being outside of the gas station.

NYPD Patrol Guide Procedure 221-01 states that, "Members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force." Additionally, "In determining whether the use of force is reasonable, members of the service should consider the following: a. The nature and severity of the crime/circumstances, b. Actions taken by the subject, c. Duration of the action, d. Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, e. Whether the subject is actively resisting custody, f. Whether the subject is attempting to evade arrest by flight, g. Number of subjects in comparison to the number of MOS, h. Size, age, and condition of the subject in comparison to the MOS, i. Subject's violent history, if known, j. Presence of hostile crowd or agitators, k. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence" (BR 10).

When PO Damico forcefully pushed § 87(2)(b) had not yet made any threats towards PO Damico and PO Damico had not explained that § 87(2)(b) was still trespassing.

§ 87(2)(g)

it is recommended that **Allegation C** be substantiated.

PO Damico § 87(2)(g) said to § 87(2)(b) "Come here! Put your stuff down! Let's go!" after § 87(2)(b) had started walking away. § 87(2)(g)

it is recommended that **Allegations D** be substantiated.

Allegation (E) Discourtesy: Police Officer David Damico spoke discourteously to § 87(2)(b)

While not alleged by § 87(2)(b) PO Damico is heard on his BWC (BRs 05, 07) saying "Because you want to start calling people fucking s-" before getting interrupted by § 87(2)(b)

PO Damico (BR 03) initially did not recall using any profanity, but after reviewing BWC stated that he was merely reiterating what § 87(2)(b) had said to him.

PO Russ (BR 04) did not hear PO Damico using any profanity.

In PO Damico's BWC (BRs 05, 07), at 2:15, PO Damico says, "I'm just standing here, bro." § 87(2)(b) says to the civilian who is trying to convince § 87(2)(b) to leave, "No, he keeps pushing me. You ain't just standing there." PO Damico steps towards § 87(2)(b) and says in a

louder tone, "Because you want to start calling people fucking s-" and § 87(2)(b) interrupts him by saying, "Forget that."

NYPD Patrol Guide 200-02 states that officers are to "Maintain a higher standard of integrity than is generally expected of others because so much is expected of us" and must value human life, respect the dignity of each individual, and render services with courtesy, and civility (BR 11).

§ 87(2)(g) [REDACTED]
[REDACTED] It is therefore recommended that Allegation E be substantiated.

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- PO Damico has been a member of service for six years and has been listed as a subject in two CCRB cases and three allegations, one of which was substantiated.
 - 201903126 involved an allegation of threat of force that was substantiated. The Board recommended Command Discipline A and NYPD enacted no penalty.
 - This would be PO Damico's second substantiated allegation concerning a threat of force.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
- On July 20, 2021, a FOIL request for any Notice of Claim regarding this complaint was submitted to the Office of the Comptroller and will be added to the case file upon receipt (BR 14).

Squad No.: 10

Investigator: Carter Garfield Inv. Garfield 7/20/21
Signature Print Title & Name Date

Squad Leader: Eric Rigie IM Eric Rigie 8/13/2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date

CCRB Case # 202006217

